

21STCV01584 21STCV01584

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-30

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Case Number: 21STCV01584 Hearing Date: June 30, 2026 Dept: 407

Final Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: N/A TRIAL DATE:

CASE: CBL Partners, LLC v. Jin Chul Kim, et al.

CASE NO.: 21STCV01584

PROPOSED

JUDGMENT

MOVING

PARTY: Plaintiff CBL Partners, LLC

RESPONDING

PARTY: No opposition

On January 13, 2021,

Plaintiff, CBL Partners, LLC, filed a Complaint against defendants Jin Chul Kim ("JC Kim"), Young Hee Kim ("YH Kim"), and Does 1 through 25, for breach of lease agreement and breach of guaranty for the property at 1818 S. Western Ave., Suite 100, Los Angeles, California 90004. (the "Property").

On July 20, 2021, YH Kim filed a Cross-Complaint against JC

Kim for implied contractual indemnity, equitable indemnity, and contribution.

On August 25, 2021, default was entered against JC Kim on the Complaint.

On September 20, 2021, the default against JC Kim was set aside by stipulation.

On October 1, 2021, JC Kim filed a Complaint.

This case proceeded to trial on January 21, 2026. JC Kim did not appear. At the trial, the court dismissed YH Kim's Cross-Complaint action against JC Kim and dismissed Plaintiff's Complaint as to YH Kim. The court proceeded with the trial as a prove-up hearing against JC Kim.

After the hearing, the court found that Plaintiff had proved up its damages against JC Kim in the sum of \$714,164.16 and a contractual basis to award attorney fees. The court directed Plaintiff to file a memorandum of costs and a declaration to support the attorney fees award.

On March 24, 2026, Plaintiff filed a request for court judgment against JC Kim on Form CIV-100, a proposed judgment, and a memorandum of costs in the sum of \$1,347.55.

Plaintiff requests a total judgment against JC Kim in the sum of \$741,762.01, consisting of \$714,164.16 (Demand of complaint), \$1,347.85 in costs, and \$26,250.00 in attorney fees.

On March 27, 2026, the court rejected the proposed judgment for the following reasons:

1.

Despite being directed to do so, Plaintiff did not submit any evidence to support the attorney fees request.

2.

Plaintiff improperly uses Form CIV-100 for entry of judgment.

3.

Does 1 through 25 had not been dismissed from this action.

On June 22, 2026, Does 1 through 25 were dismissed from this action. On the same day, Plaintiff filed another proposed judgment and memorandum of costs. Plaintiff requests a total judgment against JC Kim in the sum of \$742,733.21, consisting of \$714,164.16, \$1,356.55 in costs, and \$27,212.50 in attorney fees.

After review, the court finds the proposed judgment, cannot be approved for the following reasons:

1. Plaintiff requests costs in the sum of \$1,356.55, but the Memorandum of Costs supports only the recovery of \$1,347.85 in costs.
2. The proposed judgment indicates that Plaintiff obtained entry of default against JC Kim. However, the entry of default was set aside pursuant to stipulation of the parties.

Based on the foregoing, the proposed judgment against Defendant Young Chul Kim is DENIED WITHOUT PREJUDICE. Plaintiff is ordered to file a revised proposed judgment and supporting documents consistent with this order before the next hearing date.

The clerk of the court to give notice.

Dated: June 24, 2026

Brock T. Hammond

Judge of the Superior Court